
ROUGEMONT HOMEOWNERS ASSOCIATION, INC.

Charlotte, North Carolina 28277

GOVERNING DOCUMENTS

Complete CCR Record Binder

1989 – 2026

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Recorded May 14, 2026

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ROUEMONT HOMEOWNERS ASSOCIATION, INC.

SECTION 1 OF 5

Amended and Restated Declaration of Covenants, Conditions and Restrictions for Rougemont

Recorded: May 14, 2026 | Mecklenburg County Register of Deeds

Instrument No. 2026050851 | Book 40423, Pages 208–219

DOCUMENT SUMMARY

This is the current, governing CCR document for Rougemont, replacing the original 1989 Declaration in its entirety. It was approved by 39 of 52 lot owners (75%), satisfying both the original CCR amendment threshold and the NC Planned Community Act (Chapter 47F) submission requirement of 67%.

Key provisions include:

- Article II — Membership & Voting: One vote per lot; Board of Directors composed of three owners.
 - Article III — Property Rights: Formally subjects the subdivision to NC Chapter 47F.
 - Article IV — Assessments: Annual and special assessments constitute a lien on each lot; 18% interest on delinquent amounts; \$20/month late fee.
 - Article V — Use of Land: Single-family residential only; attached two-car garage required; home office permitted if no customer traffic or exterior signage.
 - Article VI — Prohibitions & Maintenance: No commercial trucks, school buses, RVs, or boats in driveways, streets, or front/side yards. Minimum 6-month lease term; 20% rental cap; 24-month owner-occupancy waiting period before leasing. Four properties grandfathered for existing leases (Exhibit B): 10242, 10245, 10411, and 10516 Rougemont Lane.
 - Article VII — Architectural Control: 1,800 sq ft minimum heated living area; improvements must be aesthetically compatible with existing homes; no formal ACC — Board serves that role.
 - Article VIII — Terms: Amendments require 75% owner approval and must be recorded. Declaration prevails over Bylaws in any conflict.
 - Exhibit A — Legal property description (29.379 acres, Mecklenburg County).
 - Exhibit B — Grandfathered leased properties exempt from rental restrictions while current owner holds title.
-

For Registration
Fredrick Smith
Register of Deeds
Mecklenburg County, NC
Electronically Recorded
2026 May 14 03:41 PM RE Excise Tax: \$ 0.00
Book: 40423 Page: 208 - 219 Fee: \$ 26.00
Instrument Number: 2026050851

Fredrick Smith

drawn by/mail to:

Michael S. Hunter
Kirk, Palmer & Thigpen
1300 Baxter Street, Suite 300
Charlotte, NC 28204

STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG

AMENDED AND RESTATED
DECLARATION OF COVENANTS,
CONDITIONS AND RESTRICTIONS FOR
ROUGEMONT

This is the AMENDED AND RESTATED DECLARATION OF COVENANTS CONDITIONS AND RESTRICTIONS FOR ROUGEMONT, made on this 14th day of May, 2026. This Declaration is being recorded to supplement, amend and restate in its entirety the "Declaration of Covenants, Conditions and Restrictions for Rougemont" recorded on February 23, 1989 in Book 5972, Page 0580 in the Mecklenburg County Register of Deeds Office (the "Original Declaration"), as amended by an Amendment to the Declaration recorded February 14, 1990 in Book 12900, Page 43.

WHEREAS, the Owners (as defined in the Original Declaration) of the Lots within Rougemont desire to supplement, amend and restate the Original Declaration and all subsequent amendments in their entirety into this new "Amended and Restated Declaration" in order to restrict the use and occupancy of the Property for the protection of the Lots located on the Property;

WHEREAS the Original Declaration allows the document to be amended, after January 1, 2019, by an instrument signed by Owners of not less than 75% of the Lots.

WHEREAS the Owners also desire to submit the Property to the North Carolina Planned Community Act ("Act") (N.C.G.S. Chapter 47F), which submission also requires the vote or written consent of at least 67% of the Lot owners.

NOW THEREFORE, the President of the Rougemont Homeowners Association, Inc., hereby confirms with his/her signature below that this Amended and Restated Declaration was approved by the requisite percentage of Owners. The Property (as defined in the Original Declaration) shall henceforth be held, transferred, sold, conveyed and occupied subject to the covenants, conditions, restrictions, and easements set forth in this Declaration which are for the purpose of protecting the value and desirability of, and which shall run with the Property and be binding on all parties owning any right, title, or interest in said Property or any part thereof, their heirs, successors and assigns, and shall inure to the benefit of each Owner thereof.

ARTICLE I
DEFINITIONS

- a) "Act" means the North Carolina Planned Community Act, N.C.G.S. § 47F-1-101 et seq.
- b) "Association" shall mean and refer to Rougemont Homeowners Association, Inc., a North Carolina non-profit corporation, its successors and assigns.
- c) "Board of Directors" or "Board" shall mean three (3) Owners duly elected by the Members of the Association to the Board of Directors as Directors to govern the Association in accordance with this Declaration.
- d) "Common Area" shall mean all real property now or hereafter owned by the Association for the common use and enjoyment of the Owners shown on any plat of the Property duly recorded in the Mecklenburg County Public Registry and made subject to the provisions of this Declaration.
- e) "Lot" shall mean and refer to any numbered parcel of land within the Property which is intended for use as a site for a dwelling, as shown upon any recorded plat of any part of the Property, and shall not include common areas.
- f) "Map" or "Maps" shall mean and refer to the maps of Rougemont Subdivision, recorded or to be recorded in the Mecklenburg County Public Registry, and any amendments or supplements thereto.
- g) "Member" or "Members" shall mean and refer to an Owner or Owners of Lots, and each and every person or entity holding Membership in the Association.
- h) "Owner" shall mean and refer to the record Owner, whether one or more persons or entities, of fee simple title to any Lot which is a part of the Property.
- i) "Property" shall mean and refer to the real property described in Article III.
- j) "Special Individual Assessments" shall have the meaning assigned to it in Article VII, in the Section titled Special Individual Assessments.

ARTICLE II
MEMBERSHIP AND VOTING RIGHTS

Section 1. Members. Every Owner of a Lot shall be a Member of the Association. Membership shall be appurtenant to and may not be separated from Ownership of any Lot.

Section 2. Voting Rights.

Members shall be all Owners of Lots within the Property. Every Member in the Property shall be entitled to one (1) vote for each Lot which he or she owns. In the case of multiple ownership of any Lot,

however, those multiple Owners shall be treated collectively as one Owner. The voting rights of the Membership shall be appurtenant to the ownership of the Lots.

Section 3. Board of Directors. The Association shall be governed by a Board of Directors in accordance with this Declaration. The Board of Directors shall be composed of three (3) Owners, the election and procedures of which shall be as set forth in the Bylaws of the Association.

ARTICLE III

PROPERTY RIGHTS

Section 1. Property Subject to Declaration. The real property which is, and shall be sold, conveyed and occupied subject to this Declaration is located in Mecklenburg County, North Carolina, and is described on Exhibit A attached hereto, as well as such additional real property as may be added to the Subdivision pursuant to the terms and conditions hereof.

Section 2. Relation to North Carolina Planned Community Act. The North Carolina Planned Community Act, N.C.G.S. § 47F-1-101 et seq., as the same may be amended from time to time ("Act"), shall apply to the Property, and the Association shall have, but not be limited to, all the powers, rights and privileges which may be exercised by a planned community (as defined in the Act) pursuant to the Act, even if such powers, rights or privileges are not specifically set forth herein or in the Association's Articles of Incorporation or Bylaws.

ARTICLE IV

ASSESSMENTS

Section 1. Creation of Lien and Personal Obligation. Each Owner of any Lot by acceptance of a deed therefore, whether or not it shall be so expressed in such deed, is deemed to covenant and agree to pay to the Association: (1) annual assessments or charges and (2) special assessments for capital improvements, repairs and maintenance and other purposes. Any such assessments or charges, together with interest, costs and applicable attorney's fees shall be a charge on the land and shall be a continuing lien upon the Lot against which such assessments or charges are made. Such assessments or charges, together with interest, costs and applicable attorney's fees, shall also be the personal obligation of the person(s), firm(s), or corporation(s) owning such Lot at the time when the assessments or charges fell, but such personal obligation shall not be imposed upon such Owner's successors in title unless expressly assumed by the successor in title, but such unpaid assessments or charges shall continue to be a lien upon the Lot against which the assessments or charges have been made.

Section 2. Purposes of Assessments and Duties of Association. The assessments or charges levied by the Association shall be used for any and all purposes allowed by law, including but not limited to, to promote the recreation, health, safety and welfare of the residents of the Property and in particular for the acquisition, improvement, and maintenance of properties, services and facilities devoted to this purpose and related to the use and enjoyment of the Common Areas including, but not limited to, the cost of repair, replacement and additions thereto, the cost of labor, equipment, materials, management and supervision thereof, the payment of taxes assessed against any such property, the procurement and maintenance of insurance, the employment of attorneys, accountants or other professionals to represent

the Association when necessary, payments of principal and interest on funds borrowed for Association purposes and such other needs as may arise. Assessments may additionally be used for the construction, maintenance and costs of one or more signs identifying the Subdivision, at such places as may be designated herein and/or on any Maps or deeds.

Without limiting the generality of the above-described purposes, the Association shall be responsible for performing the following and the assessments or charges levied by the Association may be used for the following purposes:

- (a) To maintain all Common Areas; provided, however, that the Association shall not be held to a particular standard in its maintenance of the Common Areas;
- (b) To keep all Common Areas reasonably clean and free from refuse and debris and to maintain any other amenities in a clean and orderly condition, and to maintain the landscaping therein in good condition and appearance;
- (c) To pay all ad valorem taxes levied against the Common Areas and any other property owned by the Association;
- (d) To pay the premiums on all hazard insurance carried by the Association and all public liability insurance carried by the Association and officers' and directors' liability insurance or other insurance the Association may purchase;
- (e) To pay legal, management, accounting and other professional fees incurred by the Association in carrying out its duties as set forth herein; and
- (f) To provide repair and maintenance of street lighting.

Section 3. Annual Assessments. Each Owner of a Lot shall pay its proportionate share of the assessments pursuant to the annual budget as determined by the Board. Assessments are to be calculated each year by the Board. Assessments shall be uniform for all Lots. Such assessments or charges shall be paid to the Association, which shall use the funds received by it for the purposes set forth herein and as permitted by law.

The annual assessments or charges shall constitute a lien on the Lots subject to such assessments or charges and the Owners of such Lots acquiring title thereto from time to time shall be held to have covenanted and agreed to pay all amounts provided for herein.

The Board may increase annual assessments in its reasonable discretion based on a properly adopted or properly-amended annual budget in accordance with the Act, § 47F-3-103.

Section 4. Reserves. The Association budget and each Owner's assessments shall include a reasonable amount allocated to reserves as determined by the Board each year, which shall be set aside by the Association to use for capital expenditures, repairs and unexpected contingencies.

Section 5. Collection. Annual and Special Assessments or charges may be collected in

installments as determined by the Board.

Section 6. Date of Commencement of Annual Assessments; Due Date; Certificate of Payment. The annual assessments or charges provided for herein shall be assessed as determined by the Board. The Board shall fix the amount of the annual assessments or charges against each Lot and notify the Owners of the same as set forth in the Act. The due dates for the payment of special assessments or charges shall be established by the Board.

Section 7. Effect of Nonpayment of Assessments; Remedies of the Association. Any assessments or charges which remain unpaid in whole or in part for thirty (30) days after the due date shall incur a monthly late fee or charge in the amount of twenty (\$20.00) dollars, or the maximum amount permissible by law, whichever is greater, for each full month that the same remains unpaid. The assessments or charges if not paid within thirty (30) days after the due date, shall bear interest from the due date at a minimum rate of eighteen (18%) percent per annum, or at the rate established by the Directors at the beginning of the fiscal year of the Association, not to exceed the maximum allowed by law. The Association may bring an action at law against the Owner personally obligated to pay the same or foreclose the lien against the Owner's Lot, and any interest, costs and applicable attorney's fees of such action or foreclosure shall be added to the amount of such assessments or charges. Any foreclosure of the lien may be in such manner as is prescribed by the Act. No Owner may waive or otherwise escape liability for the assessments or charges provided for herein by non-use of the Common Areas or other property of the Association or by abandoning his Lot. The Association, or any management agent acting on behalf of the Association, may charge a service, collection or administration fee, or any combination of the foregoing, in such amounts as are permissible by law, to collect unpaid assessments or charges, and/or in the enforcement of this Declaration.

ARTICLE V

USE OF LAND

Section 1. Residential Purposes Only. Each Lot shall be used solely and exclusively for residential purposes, and no dwelling other than one (1) detached single family, private residence shall be erected on any Lot. Each Lot is restricted to use for single family purposes; single family is defined as no more than three persons unrelated by blood, marriage, adoption, guardianship or other legal action.

Section 2. Garages. Each dwelling must have an attached, enclosed garage for at least two (2) cars. No carports or unenclosed garages are permitted.

Section 3. Business or Commercial Use. Lots or residences may not be used for business or commercial use, including as daycare facilities or other uses which increase traffic or visitors to the Lot. Notwithstanding, there shall be no restriction against any Owner using its residence for a home office, so long as such use does not create regular customer or client traffic to and from such Lot; create noise, odor or vibrations; and no sign, logo, symbol or nameplate identifying such business is displayed outside of Lot or can be seen outside of Lot.

Section 4. Access. No Lot shall be used for the purpose of gaining access to property other than property located in the Subdivision, except by and with the written consent of the Board or the Declarant.

Section 5 Easements. A perpetual easement is reserved over the rear 10 feet of each lot for utility installment and maintenance and/or as shown on recorded map. A perpetual easement is reserved of the side 5 feet and rear 10 feet of each lot for public store drain and/or shown on recorded map.

Section 6 Solar Devices. The installation of solar collectors that gather solar radiation as a substitute for traditional energy for water heating, active space heating and cooling, passive heating, or generating electricity must be approved in writing by the ACC or Board of Directors. No solar collectors may be installed in the following areas:

- (a) On the facade of a structure that faces areas open to common or public access;
- (b) On a roof surface that slopes downward toward the same areas open to common or public access that the façade of the structure faces; or
- (c) Within the area set off by a line running across the façade of the structure extending to the property boundaries on either side of the façade, and those areas of common or public access faced by the structure.

The ACC or Board may require screening of solar collectors installed on the ground, and prohibit the installation of solar collectors in other areas where the collector may be visible from adjacent lots or common or public areas, provided that there is an alternate location acceptable to the ACC or Board that does not increase the cost of installation nor reduce the production capacity of the collectors by more than 25%. If state, federal or local law be enacted or amended, or if common law is adopted, which renders any portion of this Section unenforceable, then the remainder of this Section shall remain enforceable; any unenforceable term or condition shall be automatically revised to comply with the law, without necessity of amending this Section.

ARTICLE VI

PROHIBITION AGAINST OFFENSIVE USE; MAINTENANCE OBLIGATIONS

Section 1. Vehicles; Parking.

(a) Vehicles are to be parked in garages or on driveways, provided that if parked in the driveway, they do not obstruct sidewalks. Vehicles of any kind are not to be parked overnight on the streets of the Property. Temporary guests will be allowed to park on the side of the street so long as the vehicle will not impede traffic or block access to any driveway. Notwithstanding the preceding sentence, the Association, its directors and officers shall not be responsible for any damage to persons or property because of vehicles parked on streets, and each homeowner and his or her guests will ensure that vehicles are parked so as not to impede traffic or endanger other persons or vehicles.

(b) No commercial truck, school bus, camper trailer, boat or boat trailer, recreational vehicle, nor any other vehicle deemed by the Board to be unsightly, shall be parked in the street, in a driveway, or in the front or side yard of any Lot. Such items may be stored in the rear yard provided they are not visible from the street or adjacent Lots.

Section 2. Nuisances. No nuisance or offensive trade or activity shall be carried on upon any

lot nor shall anything be done thereof which may be or become an annoyance or nuisance to the neighborhood. Examples of such offensive activities shall include, but not limited to, the maintenance of an auto repair site, the maintenance of unsightly outdoor storage of personal property (including toys, motorcycles, or other motor vehicles, tricycles, bicycles, boats or boat trailers, wood piles, or other miscellaneous items) on porches, patios, terraces, or yards, or similar unsightly activity not in keeping with the general good looks of the subdivision.

Section 3. Temporary Residences. No trailer, tent, shack, or temporary residence shall be constructed or maintained within the Property at any time.

Section 4. Outbuildings as Residence. No garage, trailer, mobile or modular home, tent, shack, barn or other outbuilding shall be used as a residence, either temporarily or permanently.

Section 5. Waste. No Lot in said subdivision may be used or maintained as a dumping ground for rubbish, trash, garbage or other refuse and any such material shall not be kept thereon except in sanitary containers. No materials may be stored on any Lot except as used for the construction of any improvements for that Lot as permitted herein. All Lot owners must ensure that waste pickup is in place for that Lot within no more than three (3) days after conveyance of the Lot to the owner. Each Lot shall be responsible for all expenses associated with waste pickup for that Lot.

Section 6. Lawn and Buildings; Maintenance. Each Owner shall maintain its lawn and buildings in good condition and appearance to prevent the development of unclean, unsightly, or unkempt conditions that could substantially decrease the value or appearance of the neighborhood as a whole or the specific areas.

Section 7. Enforcement of Restrictions. In the event that any Owner of any property in the subdivision shall fail or refuse to keep such premises in accordance with the requirements of this Declaration, the Association shall have the right (but not the obligation) to enforce these covenants and restrictions via equitable remedies and specific performance (included but not limited to removal or screening of the offense), in addition to all legal remedies under the Act, and shall be entitled to recover all of its expenses and reasonable attorneys' fees in doing so.

Section 8. Leasing of Homes. The minimum term of permitted leases shall be six (6) months and the maximum percentage of all Lots which may be leased at any given time shall be twenty percent (20%). The tenant(s) under any such lease shall be bound by all of the provisions of this Declaration. Any such leases shall not relieve the Owner of its responsibilities and obligations under this Declaration. Prior to entering into any lease, the Owner of the Lot proposed to be leased shall present the lease to the Board for approval in order for the Board to ensure (i) that the lease complies with the provisions of this Declaration, and (ii) that the lease will not result in the rental of more than twenty percent (20%) of the Lots in the Property. The responsibility to maintain the home and lot is on the Owner regardless of lease agreement structure. The Board reserves the right to grant exemptions from the 20% cap or 24-month waiting period (described in the following Section 9) with respect to any particular Lot for exceptional circumstances or if strict enforcement hereof would result in undue hardship to the Owner. Decisions on claimed exceptional circumstances shall be determined on a case-by-case basis, are in the sole discretion of the Board, and are not appealable by the Owner.

Section 9. Occupancy by Lot Owner. No Lot Owner shall lease their Lot sooner than the date beginning twenty-four (24) months after the Lot Owner acquired title to the Lot. The Board may make exceptions to this rule in hardship circumstances.

Section 10. Property Currently Subject to Lease: Any Lot Owners whose Lot is leased (with a minimum initial term of six months) as of the date of recordation may continue to lease the property irrespective of the 20% cap or 24-month waiting period as described in Sections 8 and 9 above, but subject to all other provisions in this Article VI. This exemption shall remain in effect so long as title to the property remains in the Lot Owner as of the date of this recordation and will expire when fee simple title to the property is transferred by the current Lot Owner, whether such transfer is by deed, inheritance, or otherwise. An exclusive schedule of the Lots which are currently leased and falling within this exemption is appended hereto as Exhibit B and incorporated herein by reference.

Section 11. Animals. Ordinary household pets are permitted. No animals or livestock (e.g. goats, pigs, horses) of any kind shall be raised or kept on any Lots. Chickens, excluding roosters, are allowed provided they are in controlled environment and do not cause noise or constitute nuisance in the neighborhood.

ARTICLE VII

ARCHITECTURAL CONTROL

Section 1. Subdivision Not Allowed. No individual numbered Lot shall be subdivided by sale or otherwise so as to reduce its total area as shown on said map referred to above. Lots shall not be combined.

Section 2. Completion and Reconstruction. All construction must be completed within one year after construction starts. Any residence which is destroyed or substantially damaged by fire, storm or other casualty must be reconstructed, or the Lot cleared of the remnants of the damaged or destroyed residence, within one year of the casualty.

Section 3. Home Improvements and Modifications. Any improvement or modification to a residence or other structures on a Lot must be of a design, color, quality and materials consistent and aesthetically compatible with existing homes in the community.

Section 4. Minimum Size of Residence; Specifications. Any residence erected on any Lot shall contain not less than 1,800 square feet of enclosed heated living area for any dwelling. "Enclosed heated living area" as used herein shall not include garages, carports, unattached storage areas, open porches of any type, or any other area which is not heated by a central HVAC system.

Section 5. Existing Structures. Any structures or improvements that are in place at the time this Amended and Restated Declaration is recorded that are not in compliance with any of the restrictions hereof, shall be considered exempt from the applicable restriction.

ARTICLE VIII

TERMS OF RESTRICTIONS

Section 1. Duration: Amendment. The foregoing covenants, conditions and restrictions are to run with the land and shall be binding on all parties and all persons owning Lots in the above-described subdivision in perpetuity unless terminated in accordance with the Act.

An amendment to this Declaration by the Owners may be proposed by the Board or by petition signed by twenty-five percent (25%) or more the Owners. The amendment proposed must be approved by an affirmative vote or written consent (or any combination thereof) of 75% of the votes in the Association. The amendment, properly executed with the same formalities as a deed by the President or by any other authorized officer of the Association shall be recorded in the Office of the Register of Deeds of Mecklenburg County, and no such amendment to this Declaration shall be effective until so recorded. In the event of a conflict between any provision of the Declaration and the Association's Bylaws, the Declaration prevails.

Section 2. Enforcement. The Association or any Owner shall have the right to enforce, by any proceeding at law or in equity, all restrictions, conditions, and covenants, now or hereafter imposed by the provisions of this Declaration. Failure by the Association or by any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter.

Section 3. Invalidation. Invalidation of any of the covenants, conditions or restrictions by judgment or court order shall in no way affect any of the other provisions which shall remain in full force and effect.

Section 4. Notices. All notices, demands, requests, or approvals ("Notices") given by the Association to any Owner shall be in writing and shall be deemed to have been properly given if sent by United States registered or certified mail, postage prepaid, addressed to an Owner, at the street address of the Owner's Lot or an e-mail address that the Owner has provided to the Association for purpose of receiving notices. Each Owner accepts that written notices and any correspondence will be sent to the property address unless the Owner notifies the Association in writing, United States registered or certified mail, postage prepaid, return receipt requested, of an alternate mailing address.

Section 5. Binding Effect. All of the covenants, stipulations and conditions contained in this Declaration shall be binding upon and inure to the benefit of the Association, the Owners, and their respective heirs, personal representatives, executors, administrators, successors and assigns, and shall run with the land and the title to each Lot in perpetuity.

SIGNATURES APPEAR ON THE FOLLOWING PAGE

IN WITNESS WHEREOF, the Declarant has caused this Declaration to be duly executed by authority duly granted as of the date first above written.

ROUGEMONT HOMEOWNERS ASSOCIATION,
INC., a North Carolina nonprofit corporation

By:

President Joseph Bryan Armour

STATE OF NORTH CAROLINA

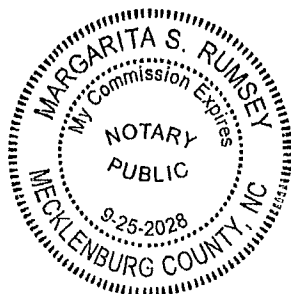
COUNTY OF Mecklenburg

I, Margarita S. Rumsey a Notary Public of Mecklenburg
County, State of North Carolina, certify that Joseph Bryan Armour personally
came before me this day and acknowledged that s/he is the President of ROUGEMONT HOMEOWNERS
ASSOCIATION, INC., a North Carolina nonprofit corporation, and that being authorized to do so,
executed the foregoing on behalf of the company.

WITNESS my hand and official stamp or seal, this 14th day of May, 2028

Margarita S. Rumsey Notary Public

(Official Seal)



My Commission Expires: Sept. 25, 2028

EXHIBIT A

Description of Real Property

Lying and being situate in Mecklenburg County, North Carolina and more particularly described as follows:

Beginning at an old iron in the northerly right of way margin of Endhaven Lane (R/W-60'), a point in the westerly boundary line of R. M. Whitesides (now or formerly, D.R. 939-68); thence with the westerly line of said Whitesides property N 6-38-40 W 1682.87 feet to a point in the center line of Four Mile Creek; thence with the center line of Four Mile Creek two (2) courses and distances as follows: (1) N 177-42 W 32.94 feet, and (2) N 63-37 W 307.0 feet to a point in the easterly line of W. H. Trotter (now or formerly, D. R. 4444-104); thence with the easterly line of the said Trotter property S 20-33 W 1177.91 feet to an old iron, the northwesterly corner of the property of D. G. Price (now or formerly, D. R. 2884-389); thence with the northerly line of the D. G. Price property S 76-39-07 E 149.22 feet to an old iron, the northeasterly corner of the D. G. Price property; thence with the easterly line of the D. G. Price property S 13-51-53 W 216.97 feet to an old iron, the northwesterly corner of O. A. Price (now or formerly, D. R. 2529-427); thence with the northerly line of the property of O. A. Price S 79-33-41 E 149.91 feet to an old iron, the northwesterly corner of R. A. Price (now or formerly, D. R. 3828-130); thence with the northerly line of the R. A. Price property S 79-34-55 E 277.64 feet to a point, the northwesterly corner of R. A. Price; thence with the easterly lines of the properties of R. A. Price two (2) courses and distances as follows: (1) S 7-50-25 W 508.48 feet to a point and (2) S 7-27-35 W 398.23 feet to a point in the right of way of Endhaven Lane; thence in the right-of-way of Endhaven Lane S 78-00-49 E 610.13 feet to a point in the right-of-way of Endhaven Lane; thence N 6-38-40 W 32.54 feet to the point and place of Beginning, containing 29.379 acres, all as shown on survey of Bobby J. Raye, Reg. Surveyor dated February 25, 1988.

Book/page for recorded plat maps:

22/872

23/529

23/530

23/663

EXHIBIT B

Leased Homes Qualifying for the Exemption Described in Article VI, Section 10

Address
10242 Rougemont Lane
10245 Rougemont Lane
10411 Rougemont Lane
10516 Rougemont Lane

ROUEMONT HOMEOWNERS ASSOCIATION, INC.

SECTION 2 OF 5

1990 Amendments to the Original Declaration (Sections 1, 2 & 3)

Recorded: February 14, 1990 | Mecklenburg County Public Registry
Book 6210, Pages 490 & 494

DOCUMENT SUMMARY

Two instruments were recorded simultaneously on February 14, 1990 by the original Declarants (Rice Development Corporation, Ayrshire Corporation) and Builder (Don Galloway Homes, Inc.).

Document 1 — Amendment to Declaration (Book 6210, Page 490): Amends Article IV, Section 3 of the original 1989 CCRs for Section 1 of Rougemont. Reduces the minimum finished floor area from 2,200 sq ft to 1,800 sq ft. A 2% unintentional violation tolerance applies.

Document 2 — First Supplementary Declaration (Book 6210, Page 494): Formally annexes Rougemont Sections 2 and 3 (Map Book 23, Pages 530 and 529) into the CCR scheme. Applies the same 1,800 sq ft minimum to all lots in Sections 2 and 3, superseding the original 2,200 sq ft requirement for those sections.

Both instruments remain in effect only to the extent not superseded by the 2026 Amended and Restated Declaration (Section 1 of this binder), which restates all prior amendments in their entirety.

REAL ESTATE
BOOK PAGE

6210 0491

ATTEST:

AYRSHIRE CORPORATION

Ray L. Tate
Asst. Secretary

By: Don K. Ray
President

(CORPORATE SEAL)

ATTEST:

DON GOLLOWAY HOMES, INC.

Lisa S. Anderson
Asst. Secretary

By: Don A. Golloway
President

(CORPORATE SEAL)

STATE OF NORTH CAROLINA

COUNTY OF MECKLENBURG

I, Carol T. Lewis, a Notary Public in and for said County and State do hereby certify that Raymond L. Lancaster personally appeared before me this day and acknowledged that he is Asst. Secretary of RICE DEVELOPMENT CORPORATION, a North Carolina corporation, and that by authority duly given and as the act of the corporation, the foregoing instrument was signed in its name by its President, sealed with its corporate seal and attested by him as its Asst. Secretary.

WITNESS my hand and official seal, this 6th day of February, 1990.

My Commission Expires: 3-23-92

Carol T. Lewis
Notary Public

(Notarial Seal)

BOOK PAGE
6210 0490

000058

STATE OF NORTH CAROLINA PRESENTED FOR AMENDMENT TO DECLARATION OF COVENANTS,
COUNTY OF MECKLENBURG REGISTRATION CONDITIONS AND RESTRICTIONS - ROUGEMONT

90 FEB 14 AM 10:53

THIS AMENDMENT, ^{APNE A. POWERS,} ~~MECKLENBURG COUNTY~~ day of February, 1990, by
RICE DEVELOPMENT CORPORATION, a North Carolina corporation, and AYRSHIRE
CORPORATION (hereinafter referred to as "Declarant") and and DON GALLOWAY HOMES,
INC. (hereinafter referred to as "Builder").

W I T N E S S E T H:

WHEREAS, Declarant has imposed certain covenants, conditions and
restrictions on ROUGEMONT SUBDIVISION by instrument recorded in Book 5972 at
Page 580 of the Mecklenburg County Public Registry; and

WHEREAS, Declarant and Builder, owners of all the property subject to
and to be subjected to said Declaration as amended, wishes to amend said
Declaration in certain respects.

NOW, THEREFORE, Declarant and Builder, pursuant to the premises afore-
said, do hereby amend that certain Declaration of Covenants, Conditions and
Restrictions recorded in Book 5972 at Page 580 of the Mecklenburg County Public
Registry as follows:

Section 3 of Article IV is hereby deleted and replaced by the follow-
ing new Section 3 of Article IV:

Size of Structures. No residential structure shall be erected or
placed having a finished floor area of less than 1800 square feet.

Unintentional violations not exceeding two percent (2%) of the minimum
square foot requirements herein set forth shall not be considered a
violation of this Section.

In all other respects, the provisions contained in the Declaration of
Covenants, Conditions and Restrictions recorded in Book 5972 at Page 580 of the
Mecklenburg County Public Registry shall remain in full force and effect.

IN WITNESS WHEREOF, Declarant and Builder have hereunto caused this
instrument to be executed in their corporate names and their corporate seal
affixed hereto by authority of their Boards of Directors, the day and year first
above written.

ATTEST:

RICE DEVELOPMENT CORPORATION


Asst. Secretary

By: 
President

(CORPORATE SEAL)

PAID BY CASH
PARHAM, HELMS & KELLAM
1329 EAST MOREHEAD
CHARLOTTE, NC 28204
CA

(wht31/5-rougel) 10.00
<> 10.00
CASH 10.00

11:57 #8174 000
02/14/90



6210 0494

000059

STATE OF NORTH CAROLINA

PRESENTED FOR FIRST SUPPLEMENTARY DECLARATION OF
REGISTRATION COVENANTS, CONDITIONS AND RESTRICTIONS

COUNTY OF MECKLENBURG

90 FEB 14 AM 10:53

THIS SUPPLEMENTAL DECLARATION made on this 14 day of February, 1990 by RICE DEVELOPMENT CORPORATION and AYRSHIRE CORPORATION (hereinafter referred to as "Declarant") and DON GALLOWAY HOMES, INC.

W I T N E S S E T H:

WHEREAS, RICE DEVELOPMENT CORPORATION and DON GALLOWAY HOMES, INC. are the owners of that property shown on maps of ROUGEMONT, Section 2 and ROUGEMONT, Section 3, which maps are recorded in Map Book 23 at Page 530 and Map Book 23 at Page 529, respectively, of the Mecklenburg County Public Registry; and

WHEREAS, Declarant has heretofore imposed Covenants, Conditions and Restrictions upon ROUGEMONT, SECTION 1, which map appears of record in Map Book 23 at Page 872 of the Mecklenburg County Public Registry; and

WHEREAS, the aforesaid Declaration of Covenants Conditions and Restrictions is recorded in Book 5972 at Page 580 of the Mecklenburg County Public Registry and provides therein Article II, Section 2, that "... additional land within the area described in the metes and bounds description ... as SCHEDULE A ... may be annexed to the existing property by Declarant ..."; and

WHEREAS, Declarant desires to incorporate the aforesaid ROUGEMONT, Section 2 and ROUGEMONT, Section 3, as same is shown on maps thereof recorded in Map Book 23 at Page 530 and Map Book 23 at Page 529, respectively, of the Mecklenburg County Public Registry within the properties subject to the aforesaid Declaration of Covenants, Conditions and Restrictions, and to impose certain other restriction as to the size of structures placed thereon.

NOW, THEREFORE, pursuant to the provisions of the aforesaid Declaration of Covenants, Conditions and Restrictions, Declarant does hereby annex ROUGEMONT, Section 2 and ROUGEMONT, Section 3 as shown on the aforesaid map to the properties which are subject to the Declaration of Covenants, Conditions and Restrictions recorded in Book 5972 at Page 580 of the Mecklenburg County Public Registry, to the end that ROUGEMONT, Section 2 and ROUGEMONT, Section 3, as aforesaid, shall be within the scheme of said Declaration, and to the further end, that all present and future owners of all Lots shown on maps recorded in Map Book 23 at Page 530 and Map Book 23 at Page 529, respectively, of the Mecklenburg County Public Registry shall be subject to the terms and conditions of the aforesaid Declaration, and shall have the rights and privileges therein set out; subject, however, to the following, which shall replace Article IV, Section 3 thereof insofar as its pertains to ROUGEMONT, Section 2 and ROUGEMONT, Section 3:

Size of Structures. No residential structure shall be erected or placed having a finished floor area of less than 1800 square feet.

Unintentional violations not exceeding two percent (2%) of the minimum square foot requirements herein set forth shall not be considered a violation of this Section.

IN WITNESS WHEREOF, the undersigned Declarant and DON GALLOWAY HOMES, INC. have caused this instrument to be executed in their corporate names, and their corporate seals affixed hereto by authority of their Boards of Directors, the day and year first above written.

12:30 #8175 000

02/14/90

RICE DEVELOPMENT CORPORATION

By: [Signature] President

Asst. Secretary

(CORPORATE SEAL)

DRAWN BY AND MAILED TO
PARHAM, HELMS & KELLAM
1329 EAST MOREHEAD
CHARLOTTE, NC 28204
CA

(wht31/doc-rougel)

ROUEMONT HOMEOWNERS ASSOCIATION, INC.

SECTION 3 OF 5

Declaration Ratifying the Covenants, Conditions and Restrictions for Rougemont Subdivision

Executed: September 29, 1993 | Filed: Mecklenburg County Registry
Book 7477, Pages 549–551

DOCUMENT SUMMARY

This instrument was executed by Rougemont Associates, a North Carolina general partnership, acting through William V. Roberts as Attorney-in-Fact.

Background: After the original Declarants' deed of trust was foreclosed in 1990 and the lots were conveyed to Southern National Bank and then to Rougemont Associates, a question arose as to whether the CCRs survived the foreclosure. This ratification document resolves that question.

Purpose: Rougemont Associates confirms and declares that all lots are and shall be held subject to the covenants, conditions, restrictions, and easements set forth in the original 1989 Declaration (as amended and supplemented through 1990). All provisions run with the land and are binding on all parties with any interest in the lots.

Architectural control rights: Rougemont Associates expressly reserved architectural control rights (identical to those originally granted to the ACC under Article III of the 1989 Declaration) for itself and its successors and assigns.

Exhibit A lists 30 lots ratified under this instrument (Lots 4, 6, 7, 8, 9, 12B, 13, 22–28, 30, 31, 33, 35, 36, 38–48, 47, 48, 51A), with corresponding tax parcel numbers.

STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG

DECLARATION RATIFYING
DECLARATION OF COVENANTS,
CONDITIONS AND RESTRICTIONS
FOR ROUGEMONT SUBDIVISION

THIS DECLARATION RATIFYING DECLARATION OF COVENANTS,
CONDITIONS AND RESTRICTIONS FOR ROUGEMONT SUBDIVISION (the "Ratification")
is made this 29th day of September, 1993, by ROUGEMONT ASSOCIATES, a North
Carolina general partnership (hereinafter referred to as "Rougemont");

PRELIMINARY STATEMENT:

Rougemont is the owner of those certain residential building lots located in the Rougemont
Subdivision in Mecklenburg County, North Carolina (the "Lots"), more particularly described
on Exhibit A attached hereto and made a part hereof, having acquired such lots by deed of
Southern National Bank of North Carolina, dated May 29, 1991 and recorded in Book 6539 at
Page 216 in the Mecklenburg County Public Registry.

The Lots were subjected to certain covenants, conditions, restrictions and easements by
that certain Declaration of Covenants, Conditions and Restrictions-Rougemont dated February
10, 1989, filed February 23, 1989 by Rice Development Corporation and Ayrshire Corporation,
and recorded in Book 5972 at Page 580 in the Mecklenburg County Public Registry (the
"Declaration"). The Declaration was amended by instrument dated February 6, 1990 and
recorded in Book 6210 at Page 490 and was supplemented by instrument dated February 6, 1990
and recorded in Book 6210 at Page 494 in said Registry.

On or about June 5, 1990, James R. Bryant, III, Trustee, commenced a foreclosure
proceeding in Mecklenburg County Superior Court (File No. 90-SP-945) and obtained an Order
allowing the foreclosure of a Deed of Trust filed May 5, 1988 and recorded in Book 5757 at
Page 701 in the Mecklenburg County Public Registry, which Deed of Trust was filed for
registration prior in time to the recordation of the Declaration, as amended and supplemented.
The Deed of Trust encumbered certain property in Mecklenburg County, North Carolina,
including the Lots. The Notice of Trustee's Sale of Real Estate published in the foreclosure
proceeding stated that the sale would be made subject to "all prior liens, unpaid taxes,
restrictions and easements of record and assessments, if any." The sale of the property pursuant
to the Order allowing the foreclosure was held on July 25, 1990 at which Southern National
Bank of North Carolina ("Southern National") was the highest bidder. On August 15, 1990, the
Trustee conveyed the property subject to the foreclosure, including the Lots, to Southern
National by instrument recorded in Book 6334 at Page 1407 in said Registry. The Trustee's
Deed also recited that the property was sold at the foreclosure sale "subject to prior liens,
restrictions, easements, conveyances and releases." The subsequent deed from Southern
National to Rougemont conveyed the Lots subject to "easements, conditions and restrictions of
record."

The purpose of this instrument is to ratify and confirm the applicability of the Declaration
to the Lots notwithstanding the foreclosure of the prior Deed of Trust in favor of Southern
National in accordance with the intention of the parties that all of the Lots shall be in all respects
subject to the terms and conditions of the Declaration, as amended and supplemented.

NOW, THEREFORE, Rougemont, for itself, its successors and assigns, does hereby
ratify, confirm and declare that all of the Lots are and shall be held, transferred, sold, conveyed
and occupied subject to the covenants, conditions, restrictions and easements set forth in the
Declaration, as amended and supplemented, which covenants, conditions, restrictions and
easements shall run with the Lots and be binding on all parties owning any right, title or interest
therein and shall inure to the benefit of each owner thereof. The provisions of the Declaration,
as amended and supplemented, are expressly incorporated into this instrument by reference as
if fully set forth herein in as full and complete a manner as if Rougemont were the original

DRAWN BY AND MAIL TO:

Jerry Alan Reese
Weinstein & Sturges, P.A.
P. O. Box 32248
Charlotte, NC 28232-2248
(R. D. Box #27)

JUDITH A GIBSON REC OF DEEDS MECK NC
BK: 07477 PG: 0549/0551 #:0735 10.00
FILED FOR REGISTRATION 09/29/93 16:01

mk

Declarant of such covenants, conditions, restrictions and easements. In recording this instrument, Rougemont expressly reserves unto itself, its successors and assigns, rights of architectural control, builder approval and enforcement identical to those granted to the Architectural Control Committee to be appointed by Rice Development Corporation pursuant to Article III of the Declaration.

IN WITNESS WHEREOF, Rougemont has caused this instrument to be executed in its name by its duly authorized attorney-in-fact as of the day and year first above written.

ROUGEMONT ASSOCIATES

By: William V. Roberts [SEAL]
William V. Roberts, Attorney-in-Fact

STATE OF NORTH CAROLINA

COUNTY OF MECKLENBURG

I, Patricia G. Davies, a Notary Public of the County and State aforesaid, certify that WILLIAM V. ROBERTS, attorney-in-fact for ROUGEMONT ASSOCIATES, a North Carolina general partnership, Grantor, personally appeared before me this day, and being by me duly sworn, says that he executed the foregoing and annexed instrument for and in behalf of the said ROUGEMONT ASSOCIATES, and that his authority to execute and acknowledge said instrument is contained in an instrument duly executed, acknowledged and recorded in Book 6581 at Page 747 in the office of the Register of Deeds in the County of Mecklenburg, State of North Carolina, on the 15th day of July, 1991, and that this instrument was executed under and by virtue of the authority given by said instrument granting him power of attorney.

I do further certify that the said WILLIAM V. ROBERTS, attorney-in-fact, acknowledged the due execution of the foregoing instrument for the purposes herein expressed for and in behalf of the said ROUGEMONT ASSOCIATES, a North Carolina general partnership.

WITNESS my hand and official stamp or seal, this 29th day of September, 1993.



Patricia G. Davies
Notary Public

**EXHIBIT A
TO DECLARATION RATIFYING
DECLARATION OF COVENANTS,
CONDITIONS AND RESTRICTIONS FOR
ROUGEMONT ASSOCIATES**

Lot #	Section #	Map Book/Page	Tax Parcel #
4	1	22/872	223-241-20
6	1	22/872	223-241-22
7	2	23/530	223-241-23
8	2	23/530	223-241-24
9	2	23/530	223-241-25
12B	2	25/642	223-241-28
13	3	23/529	223-241-29
22	3	23/529	223-241-38
23	3	23/529	223-241-39
24	3	23/529	223-241-40
25	3	23/529	223-241-41
26	3	23/529	223-241-42
27	2	23/530	223-241-55
28	3	23/529	223-241-43
30	3	23/529	223-241-45
31	3	23/529	223-241-46
33	3	23/529	223-241-48
35	2	23/530	223-241-50
36	2	23/530	223-241-51
38	2	23/530	223-241-53
39	2	23/530	223-241-54
40	2	23/530	223-241-56
41	2	23/530	223-241-57
42	2	23/530	223-241-58
43	2	23/530	223-241-59
44	2	23/530	223-241-60
45	2	23/530	223-241-61
46	2	23/530	223-241-62
47	1	22/872	223-241-63
48	1	22/872	223-241-64
51A	1	23/663	223-241-67

State of North Carolina, County of Mecklenburg

The foregoing certificate(s) of Patricia G. Davies

Notary(ies) Public is/are certified to be correct.

This 29th day of September, 19 93

JUDITH A. GIBSON, REGISTER OF DEEDS

By: Ray H. Posey Deputy Register of Deeds

EXHIBIT A

0747-0551

Original Declaration of Covenants, Conditions and Restrictions for Rougemont

Recorded: February 23, 1989 | Mecklenburg County Registry
Book 5972, Pages 580–588

DOCUMENT SUMMARY

The founding CCR document for Rougemont, executed by Rice Development Corporation and Ayrshire Corporation (collectively, 'Declarant') on February 10, 1989. This document established the original covenant framework for all lots in the subdivision.

Key original provisions (many superseded by the 2026 Amended and Restated Declaration):

- Article I — Definitions: Owner, Properties, Lot, Declarant.
- Article II — Property Subject to Declaration: Covers all property in Map Book 22, Page 872 (Section 1), with provision to annex additional sections.
- Article III — Architectural Control Committee (ACC): Three-member committee appointed by Declarant; approval required for all structures, alterations, and improvements. NOTE: The ACC structure was replaced in the 2026 CCRs with a Board-based standard.
- Article IV — Use Restrictions: Residential single-family only; 2.5-story max height; 2,200 sq ft minimum (later reduced to 1,800 sq ft by 1990 amendment); no commercial trucks, RVs, boats in driveways, streets, or yards; no fences forward of building setback; no exterior clothes drying; no nuisances or auto repair.
- Article V — General Provisions: Pre-2019 amendments required 90% owner approval; post-2019 threshold reduced to 75%. Enforcement rights held by any owner.
- Schedule A — Legal description of the 29.379-acre property.

DECLARATION OF COVENANTS
CONDITIONS AND RESTRICTIONS
ROUEMONT

PRESENTED FOR
REGISTRATION
89 FEB 23 AM 10:09
JANE A. POWERS
REGISTER OF DEEDS
MECKLENBURG CO., N.C.

THIS DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS made this the 10th day of February, 1989, by RICE DEVELOPMENT CORPORATION and AYKSHIRE CORPORATION, hereinafter collectively referred to as "Declarant";

WITNESSETH:

WHEREAS, Declarant is the owner of the real property shown on a map of ROUEMONT, which map is recorded in Map Book 22, Page 872, in the Mecklenburg Public Registry, which property is more particularly described in Article II hereof, and desires to create thereon an exclusive residential community of single-family houses to be named ROUEMONT; and

WHEREAS, Declarant desires to insure the attractiveness of the subdivision and to prevent any future impairment thereof, to prevent nuisances, to preserve, protect, and enhance the values and amenities of all properties within the subdivision; and, to this end desire to subject the real property shown upon the aforesaid map and to the covenants, conditions, restrictions and easements hereafter set forth, each and all of which is and are for the benefit of said property and each owner thereof;

NOW THEREFORE, Declarant, by this Declaration of Covenants, Conditions, and Restrictions, does declare that all of the property shown on the aforesaid map of ROUEMONT, is and shall be held, transferred, sold, conveyed, and occupied subject to the covenants, conditions, restrictions and easements set forth in this Declaration which shall run with the real property and be binding on all parties owning any right, title, or interest in said real property or any part thereof, their heirs, successors and assigns, and shall inure to the benefit of each owner thereof.

CASH 22.00

ARTICLE I 10:58 \$6130 000
02/23/89

DEFINITIONS

Section 1. "Owner" shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot which is a part of the Properties, including contract sellers, but excluding those having such interests merely as security for the performance of an obligation.

Section 2. "Properties" shall mean and refer to the "Property" described in Article II.

Section 3. "Lot" shall mean and refer to any numbered plot of land, with delineated boundary lines, appearing on any recorded subdivision map of the Properties.

Drawn by mail to: Parham, Helms & Kellam, 1329 E. Morehead St., Charlotte, NC 28204

Section 4. "Declarant" shall mean and refer to RICE DEVELOPMENT CORPORATION and/or AYRSHIRE CORPORATION and shall also mean and refer to any person, firm, or corporation which shall hereafter become vested, at any given time, with title to two or more undeveloped Lots for the purpose of causing resident building(s) to be constructed thereon, and any such successor in title to RICE DEVELOPMENT CORPORATION and/or AYRSHIRE CORPORATION, shall be a Declarant during such period of time as said party is vested with title to two or more such Lots (whether undeveloped or developed and unconveyed), but no longer.

ARTICLE II

PROPERTY SUBJECT TO THIS DECLARATION

Section 1. Existing Property. The real property which is and shall be held, transferred, sold, conveyed, and occupied subject to this Declaration, is located in Providence Township, Mecklenburg County, North Carolina, described as follows:

Being all of the property shown on map recorded in Map Book 22 at Page 872 in the Mecklenburg Public Registry.

Section 2. Additions to Existing Property. Additional land may be brought within the scheme of this Declaration in the following manner:

(a) Additional land within the area described in the metes and bounds description attached hereto as SCHEDULE A and incorporated herein by reference may be annexed to the existing property by Declarant, in future stages or development, without the consent of any other lot owner or owners, provided that said annexations must occur within six (6) years after the date of this instrument. Declarant may remove all or any property from the Schedule A description prior to its annexation by filing a written declaration of removal in the Mecklenburg Public Registry;

(b) The additions authorized under Subsection (a) above shall be made by filing a record Supplementary Declarations of Covenants, Conditions, and Restrictions with respect to the additional properties which shall extend the scheme of this Declaration to such properties and thereby subject such additions to the benefits, agreements, restrictions, and obligations set forth herein.

ARTICLE III

ARCHITECTURAL CONTROL

Section 1. No building, fence, wall, or other structure shall be commenced or maintained upon the Properties, nor shall any exterior addition to or change or alteration therein be made, including the erection of antennas, aerials, awnings, the placement of reflective or other material in the windows of a Homeowners Unit or other exterior attachment, until the plans and specifications showing the nature, kind, shape, heights, materials, and location of the

same shall have been submitted to and approved in writing as to harmony of external design and location in relation to surrounding structures and topography by an architectural control committee composed of three (3) or more representatives appointed by Declarant. In the event said committee fails to approve or disapprove such design and location within thirty (30) days after said plans and specifications have been submitted to it, approval will not be required, and this Article will be deemed to have been fully complied with. The architectural control committee shall have the right to charge a reasonable fee for receiving such application in an amount not to exceed \$25.00. The architectural control committee shall not approve any alterations, decorations, or modifications which would jeopardize or impair the soundness, safety, or appearance of any Lot. Refusal or approval of plans, specifications, builder or location may be based on any grounds including purely aesthetic considerations, which in the sole and uncontrolled discretion of the architectural control committee shall be deemed sufficient. Provided that nothing herein contained shall be construed to permit interference with the development of the Properties by the Declarant in accordance with its general plan of development. In order to assure that location of houses will be staggered where practical and appropriate, the structures will be located with regard to the ecological constraints and topography of each individual lot, taking into consideration topography, the location of large trees and similar considerations, the architectural control committee reserves the right to control absolutely and solely to decide the precise site and location of any house or dwelling or other structure upon all Lots. Provided, however, that such location shall be determined only after reasonable opportunity is afforded the Builder or lot Owner to recommend a specific site.

Section 2. Approval of Builder. Any builder prior to performing any work on the Properties, must be approved by the architectural control committee as to financial stability, building experience and ability to build structures of the class and type of those which are to be built on the Properties. No person, firm or entity shall be approved as a builder unless such person, firm or entity obtains his income primarily from construction of the type which builder is to perform upon the Properties. No Owner will be permitted to act as his own builder or contractor, for the exterior of any structure, except where such Owner obtains his income primarily from the construction of the type of structure to be constructed upon the Properties, and otherwise meets the qualifications for approval by the architectural control committee as hereinabove set forth.

Section 3. Completion of Improvements. The exterior of all houses and other structures and site work and landscaping must be completed within one (1) year after the construction of same shall have commenced, except where completion is impossible or would result in great hardship to the Owner or builder due to strikes, fires, national emergency or natural calamities.

Section 4. Enforcement. In the event any Owner violates the terms of this Article III, the architectural control committee or its duly appointed agent, shall, after thirty (30) days written notice to Owner to cure such violation and failure of Owner to so cure, be entitled to enter upon the property of

Owner and cure such defect including removal of any structure built in violation hereof, all at the cost and expense of Owner. This right of the architectural control committee, or its agent, shall be in addition to all other general enforcement rights which the architectural control committee may have for a breach or a violation of the terms of these covenants and restrictions and shall not be deemed a trespass by Company or its agent.

ARTICLE IV

USE RESTRICTIONS

Section 1. Land Use. All lots in the tract shall be known and described as residential lots. No structure shall be erected, altered, placed, or permitted to remain on any residential building plot other than a single-family dwelling, not to exceed two and one-half (2 1/2) stories in height and a private garage for each unit for not more than two cars and other accessory structures customarily incidental to use of the plot.

Section 2. Building Lines. No building shall be located nearer to the front or side lines than the building setback lines shown on the recorded plat, if such lines are shown. In any event, no building shall be placed nearer to any front, side, or rear setback line as required by the Mecklenburg County Zoning Ordinance or any other applicable zoning ordinance.

Unintentional violations not exceeding 10% of the minimum building line requirements herein set forth shall not be considered a violation of this Section.

Section 3. Subdivision of Lots. No person or entity may subdivide or resubdivide any lot or lots without the prior written consent of the Declarant.

Section 4. Size of Structure. No residential structure shall be erected or placed having a heated floor area of less than 2200 square feet, exclusive of garages.

Unintentional violations not exceeding 2% of the minimum foot requirements herein set forth shall not be considered a violation of this Section.

Section 5. Temporary Structures. No structure of a temporary nature shall be erected or allowed to remain on any Lot unless and until permission for the same has been granted by the architectural control committee.

Section 6. Clothes Drying. No drying or airing of any clothing or bedding shall be permitted outdoors on any Lot or in any other unenclosed area

(including patios) within the Properties.

Section 7. Nuisances. No noxious or offensive trade or activity shall be carried on upon any lot nor shall anything be done thereof which may be or become an annoyance or nuisance to the neighborhood. Examples of such offensive activities shall include, but not be limited to, the maintenance of an auto repair site, the maintenance of unsightly outdoor storage of personal property (including toys, motorcycles, or other motor vehicles, tricycles, bicycles, boats or boat trailers, wood piles, or other miscellaneous items) on porches, patios, terraces, or yards, or similar unsightly activity not in keeping with the general good looks of the subdivision as determined by the Architectural Control Committee or anything which in the determination of the Architectural Control Committee may be or may become an annoyance or nuisance to the neighborhood.

Section 8. Temporary Residence. No trailer, basement, tent, shack, garage, barn, or other outbuilding erected on the tract shall be at any time used as a residence temporarily or permanently, nor shall any structure of a temporary character be used as a residence.

Section 9. Parking of Vehicles. No commercial truck, school bus, camper trailer, boat or boat trailer, recreation vehicles, nor any other vehicle deemed by the Architectural Control Committee or its designated committee to be unsightly, shall be parked in the street, in a driveway, in the front yard, in a side yard, or in the back yard of any lot.

Section 10. Harmony of Structures. No structure shall be constructed or moved onto any lot unless it shall conform to and be in harmony with existing structures in the tract.

Section 11. Easements. A perpetual easement is reserved over the rear 10 feet of each lot for utility installment and maintenance and/or as shown on recorded map. A perpetual easement is reserved over the side 5 feet and rear 10 feet of each lot for public storm drain and/or shown on recorded map.

Section 12. Signs. No sign of any kind shall be displayed to the public view on any lot except one sign of not more than twenty-four by thirty-six inches (24" x 36") advertising the property for sale or rent; or use by a builder to advertise the property during the construction and sales period.

Section 13. Animals. No animals, livestock, or poultry of any kind shall be raised, bred, or kept on any lot, except that dogs, cats, or other household pets may be kept, provided that they are not kept, bred, or maintained for any commercial purpose.

Section 14. Trash Disposal. No lot shall be used or maintained as a dumping ground for rubbish, trash, garbage, or waste and same shall not be kept

except in sanitary containers. All incinerators or other equipment for the storage or disposal of such material shall be kept in a clean and sanitary condition.

Section 15. Fences. No fences shall be erected on any lot closer to any street line than the building setback line shown on the recorded map, nor shall any fence be erected except in accordance with the architectural control provisions of Article III hereof.

Section 16. Sight Line Limitations. No fence, wall, hedge, or shrub planting which obstructs sight lines at elevations between 2 and 6 feet above the roadways shall be placed or permitted to remain on any corner lot within the triangular area formed by the street property lines and a line connecting them at points 25 feet from the intersection of the street lines, or in the case of a rounded property corner, from the intersection of the street property lines extended. The same sight-line limitations shall apply on any lot within 10 feet from the intersection of a street property line with the edge of a driveway or alley pavement. No tree shall be permitted to remain within such distances of such intersections unless the foliage line is maintained at sufficient height to prevent obstruction of such sight lines.

ARTICLE VI

EASEMENTS

Easements for the installation and maintenance of driveway, walkway, parking area, water line, gas line, telephone, electric power line, sanitary sewer and storm drainage facilities and for other utility installations are reserved as shown on the recorded plat. Within any such easements above provided for, no structure, planting, or other material shall be placed or permitted to remain which may interfere with the installation of sewerage disposal facilities and utilities, or which may change the direction of flow or drainage channels in the easements or which may obstruct or retard the flow of water through drainage channels in the easements.

ARTICLE VII

GENERAL PROVISIONS

Section 1. Enforcement. Any Owner, shall have the right to enforce, by any proceeding at law or in equity, all restrictions, conditions, covenants, reservations, liens, and charges now or hereafter imposed by the provisions of this Declaration. Failure by any Owner to enforce any covenant or restriction herein contained shall in no event be deemed a waiver of the right to do so thereafter.

Section 2. Severability. Invalidation of any one of these covenants or restrictions by judgment or court order shall in no wise affect any other provisions which shall remain in full force and effect.

Section 3. Effect of Restrictions and Amendment. The covenants and restrictions of this Declaration shall bind only the land specifically herein described and shall run with and bind the land. This Declaration may be amended prior to January 1, 2019 by an instrument signed by the Owners of not less than ninety (90%) percent of the Lots and by the Declarant, so long as the Declarant still owns any lots, and thereafter by an instrument signed by the Owners of not less than seventy-five (75%) percent of the Lots. Any amendment must be properly recorded.

Section 4. FHA/VA Approval. In the event the Declarant has arranged for and provided purchasers of Lots with FHA/VA insured mortgage loans, then as long as Declarant is vested with title to two or more undeveloped lots subject to this Declaration of Covenants, Conditions, and Restrictions, amendment of this Declaration of Covenants, Conditions and Restrictions will require the prior approval of the Federal Housing Administration or the Veterans Administration.

IN WITNESS WHEREOF, the undersigned, RICE DEVELOPMENT CORPORATION and AYRSHIRE CORPORATION, Declarant by virtue of the provisions of Article I, Section 4, of the aforesaid Declaration of Covenants, Conditions, and Restrictions, has caused this instrument to be executed by their duly authorized officers and their corporate seals hereunto affixed the day and year first above

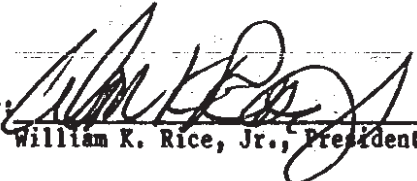
written

Attest:


Anne N. McHenry, Secretary

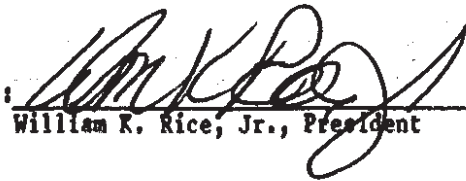
RICE DEVELOPMENT CORPORATION
A North Carolina Partnership

By:


William K. Rice, Jr., President

By: AYRSHIRE CORPORATION

By:


William K. Rice, Jr., President

ATTEST:


W. Calvin Kenley, Jr., Secretary

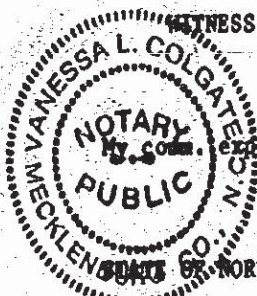
(CORPORATE SEAL)

(wht23/dec-rougel)

STATE OF NORTH CAROLINA

COUNTY OF MECKLENBURG

I, VANESSA L. COLGATE, a Notary Public in and for said County and State do hereby certify that Anne N. Metheney, personally appeared before me this day and acknowledged that she is Secretary of Rice Development Corporation, and that, by authority duly given and as the act of the corporation, the foregoing instrument was signed in its name by its President, sealed with its corporate seal and attested by her as its Secretary.



WITNESS my hand and official seal, this 10th day of February, 1989.

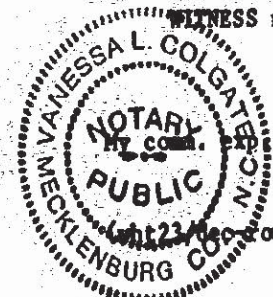
6-8-93

Vanessa L. Colgate
Notary Public

STATE OF NORTH CAROLINA

COUNTY OF MECKLENBURG

I, VANESSA L. COLGATE, a Notary Public in and for said County and State do hereby certify that W. Calvin Kenley, Jr. personally appeared before me this day and acknowledged that he is Secretary of Ayrshire Corporation, and that, by authority duly given and as the act of the corporation, the foregoing instrument was signed in its name by its President, sealed with its corporate seal and attested by him as its Secretary.



WITNESS my hand and official seal, this 10th day of February, 1989.

6-8-93

Vanessa L. Colgate

Beginning at an old iron in the northerly right of way margin of Endhaven Lane (R/W-60'), a point in the westerly boundary line of R. M. Whitesides (now or formerly, D.R. 939-68); thence with the westerly line of said Whitesides property N 6-38-40 W 1682.87 feet to a point in the center line of Four Mile Creek; thence with the center line of Four Mile Creek two (2) courses and distances as follows: (1) N 177-42 W 32.94 feet, and (2) N 63-37 W 307.0 feet to a point in the easterly line of W. H. Trotter (now or formerly, D. R. 4444-104); thence with the easterly line of the said Trotter property S 20-33 W 1177.91 feet to an old iron, the northwesterly corner of the property of D. G. Price (now or formerly, D. R. 2884-389); thence with the northerly line of the D. G. Price property S 76-39-07 E 149.22 feet to an old iron, the northeasterly corner of the D. G. Price property; thence with the easterly line of the D. G. Price property S 13-51-53 W 216.97 feet to an old iron, the northwesterly corner of C. A. Price (now or formerly, D. R. 2529-427); thence with the northerly line of the property of C. A. Price S 79-33-41 E 149.91 feet to an old iron, the northwesterly corner of R. A. Price (now or formerly, D. R. 3828-130); thence with the northerly line of the R. A. Price property S 79-34-55 E 277.64 feet to a point, the northwesterly corner of R. A. Price; thence with the easterly lines of the properties of R. A. Price two (2) courses and distances as follows: (1) S 7-50-25 W 508.48 feet to a point and (2) S 7-27-35 W 398.23 feet to a point in the right of way of Endhaven Lane; thence in the right-of-way of Endhaven Lane S 78-00-49 E 610.13 feet to a point in the right-of-way of Endhaven Lane; thence N 6-38-40 W 32.54 feet to the point and place of Beginning, containing 29.379 acres, all as shown on survey of Bobby J. Raye, Reg. Surveyor dated February 25, 1988.

(wht23/dec-rouge9)

State of North Carolina, County of Mecklenburg

The foregoing certificate(s) of Vanessa L. Colgate

a Notar(y) (ies) Public (is) (are) certified to be correct.

This 23rd day of February 19 89

Anne A. Powers, Register of Deeds

By: Amey K. Prieth Deputy

ROUGEMONT HOMEOWNERS ASSOCIATION, INC.

SECTION 5 OF 5

Recorded Plat Maps — Rougemont Subdivision Sections 1, 2 and 3

Recorded: 1988–1989 | Mecklenburg County Public Registry
Map Books 22 and 23

DOCUMENT SUMMARY

Three recorded plat maps define the physical boundaries, lot dimensions, setback lines, easements, and street layouts for all lots in the Rougemont subdivision.

Section 1 — Map Book 22, Page 872 (surveyed August 1988, recorded January 1989): The original section of Rougemont, containing lots along the initial development area. Surveyed by Bobby J. Raye, Reg. Surveyor, Charlotte NC. Total area approximately 6.039 acres. Property of Rice Development Corporation at time of recording.

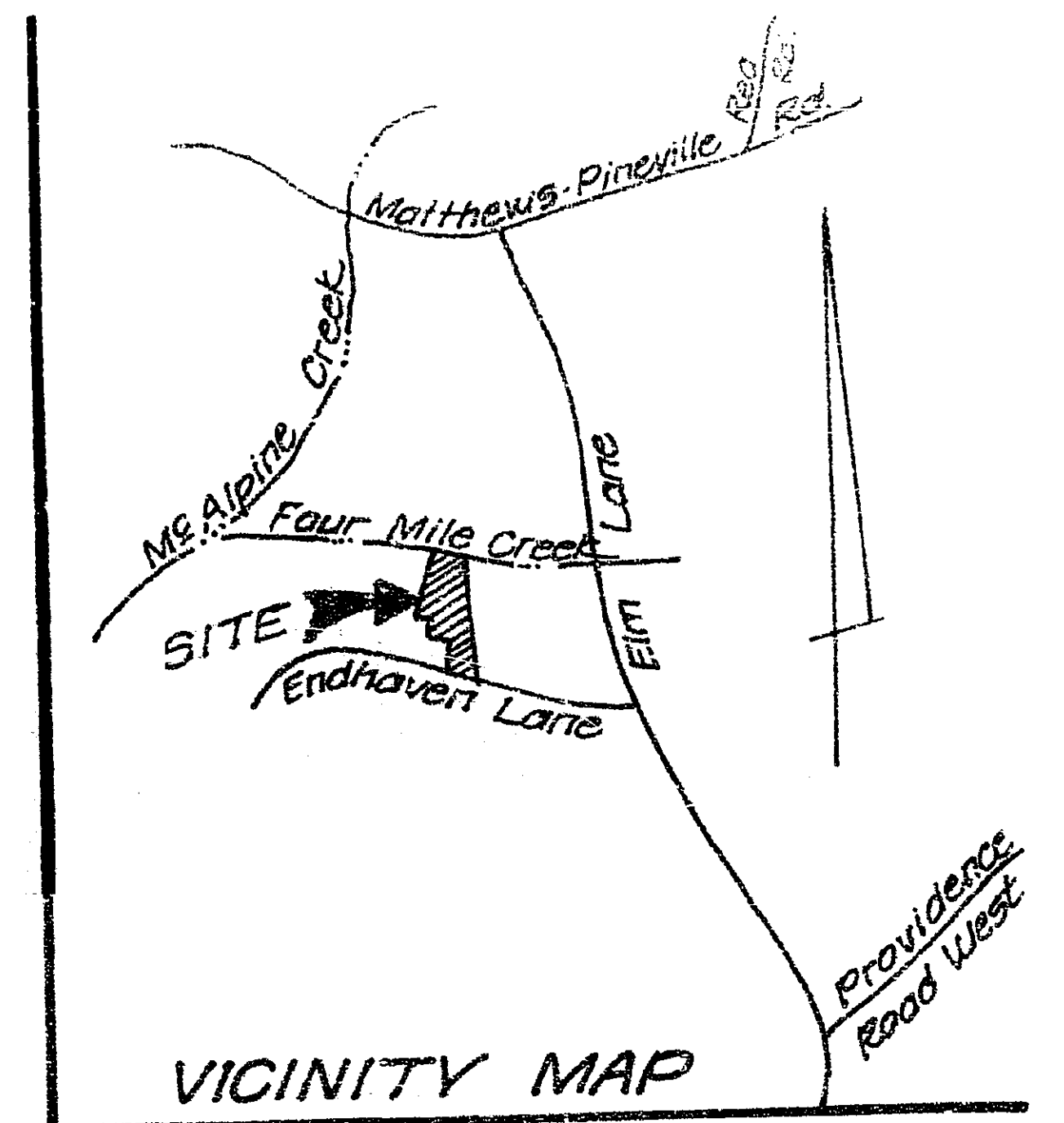
Section 2 — Map Book 23, Page 530 (surveyed April 1989, recorded December 1989): Expands the subdivision along Rougemont Lane and Joliette Lane. Area approximately 4.089 acres. Includes floodway fringe district boundary notation along Four Mile Creek. Zoning R-15 per plat notes.

Section 3 — Map Book 23, Page 529 (surveyed June 1989, recorded December 1989): The third phase, containing lots along Rougemont Lane extending toward Four Mile Creek. Area approximately 12.731 acres. Also includes floodway fringe district boundary. Minimum lot area 15,000 sq ft; minimum width 80 ft; setbacks: front 35 ft, side 10 ft, rear 50 ft.

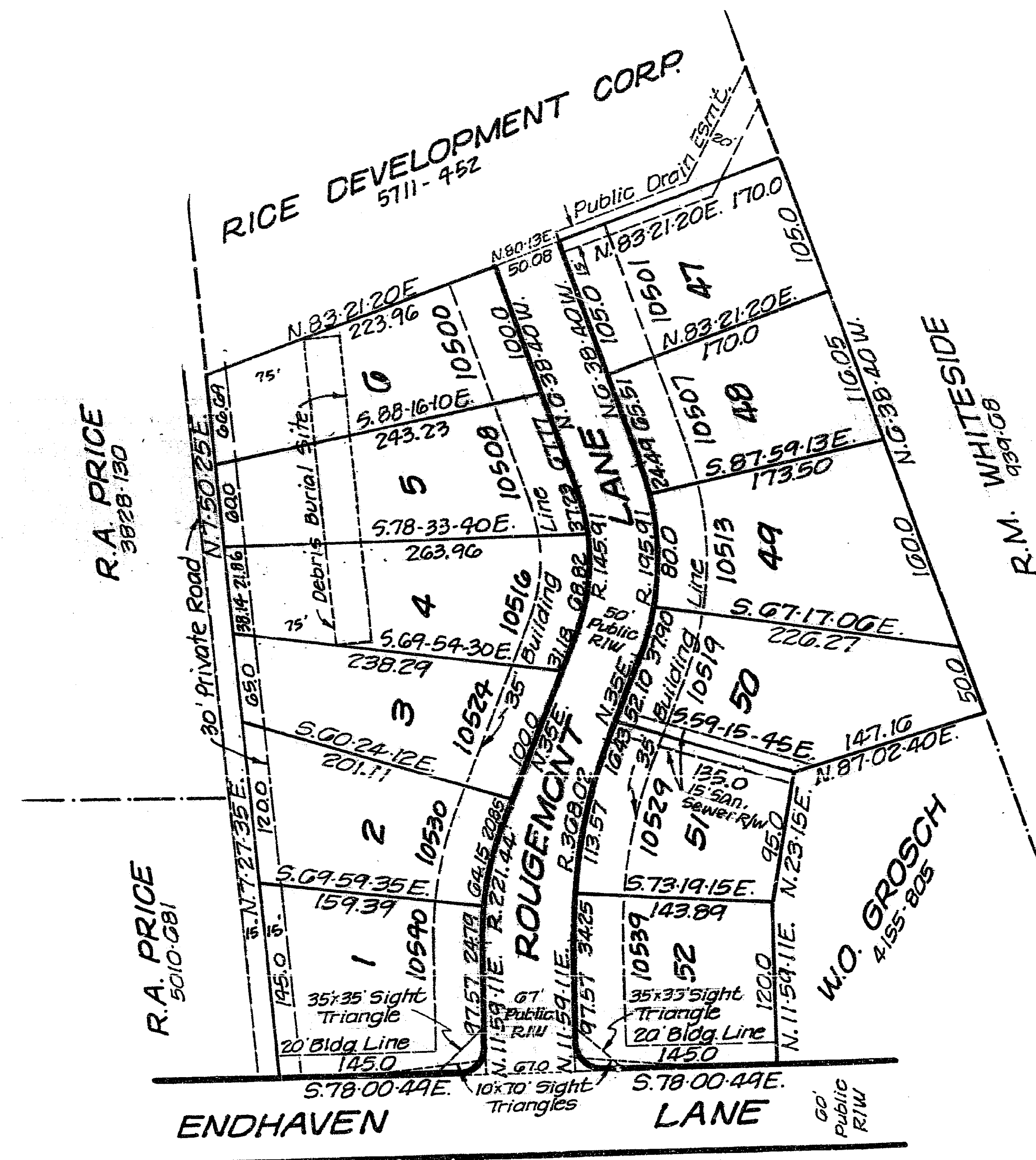
These maps are the definitive record for lot boundaries and are referenced in all CCR documents. Any question of lot dimensions or easement locations should be verified against these recorded plats.

Map Book 22 Page 872

89 JAN 17 PM 1:00
REGISTERED SURVEYORS
REGISTER OF DEEDS
MECKLENBURG CO., N.C.



State of North Carolina, County of Mecklenburg
The foregoing certificate(s) of Bill Rice, Jr.
a Notar(y) Public (is) (are) certified
to be correct.
This 11th day of January, 19 89
Anne A. Powers, Register of Deeds
By: Alexandra W. Mendenhall Deputy



APPROVED IN ACCORDANCE WITH THE PROVISIONS OF THE SUBDIVISION ORDINANCE OF MECKLENBURG COUNTY, NORTH CAROLINA.
CHARLOTTE-MECKLENBURG PLANNING COMMISSION
R. H. Henshaw 12/5/88
SECRETARY DATE

DEPARTMENT OF TRANSPORTATION
DIVISION OF HIGHWAYS
PROPOSED SUBDIVISION ROAD
CONSTRUCTION STANDARDS CERTIFICATION
APPROVED J. A. Hays
DISTRICT ENGINEER
DATE 12-8-88

APPROVED IN ACCORDANCE WITH THE
ENGINEERING REQUIREMENTS OF THE
SUBDIVISION ORDINANCE OF MECKLENBURG
COUNTY, NORTH CAROLINA.
COUNTY ENGINEER
E. K. Hays 12/11/88
DATE

ROUGEMONT

SECTION-1
PROVIDENCE TOWNSHIP MECKLENBURG COUNTY, N.C.
PROPERTY OF: RICE DEVELOPMENT CORPORATION

Scale: 1"=100'
August, 1988

Bobby J. Raye
Reg. Surveyor
627 Eastway Dr.
Charlotte, N.C.

STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG
The undersigned surveyor, being duly sworn deposes and says that the plat upon which this certificate appears was prepared in accordance with G.S. 47-30 as amended, is in all respects correct according to the best of his knowledge and belief and was prepared from an actual survey made by him on the 10th day of August, 1988, with a maximum linear error of closure of 1:10,000, and a maximum field error of angular closure of 7.5 sec-per angle.
Signed Bobby J. Raye
Registered Surveyor

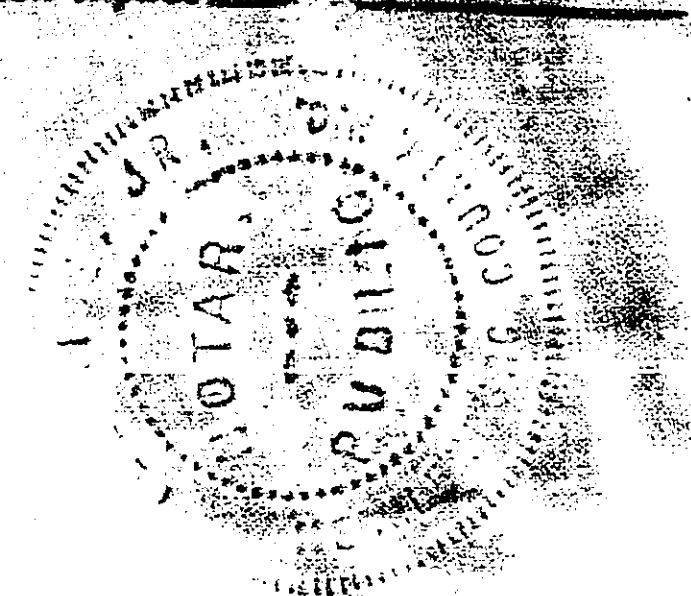
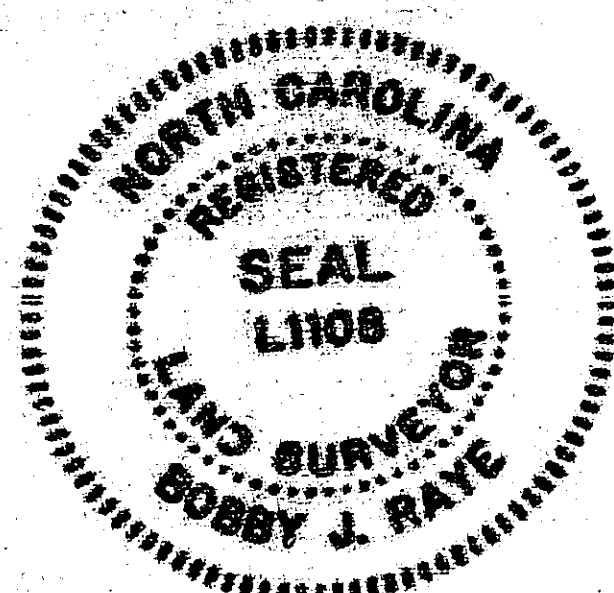
STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG
I, Bill Rice Jr.
Notary Public, in and for the County of Mecklenburg, and the State of North Carolina, do hereby certify that Bobby J. Raye Reg. Land Surveyor, personally appeared before me, this day and acknowledged the due execution of the foregoing instrument.
witness my hand and Notarial Seal, this 10th day of Aug., 19 88
My commission expires September 22, 1992

NOTES:

Area=0.039 Acres.

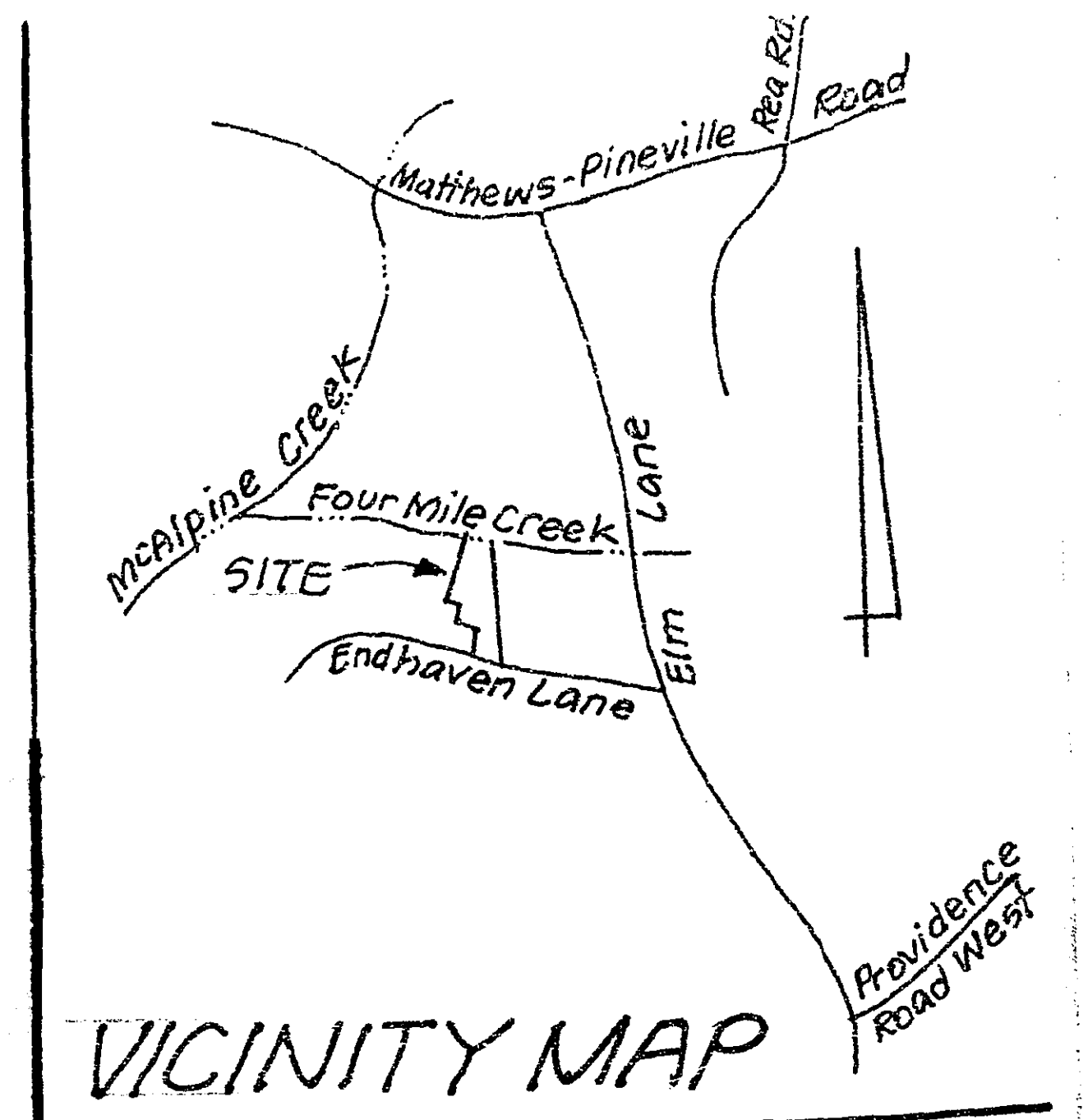
Iron stakes at all lot corners unless otherwise noted.

All street corners are subject to a 20' radius, however all distances to street corners are to the intersection of street lines.



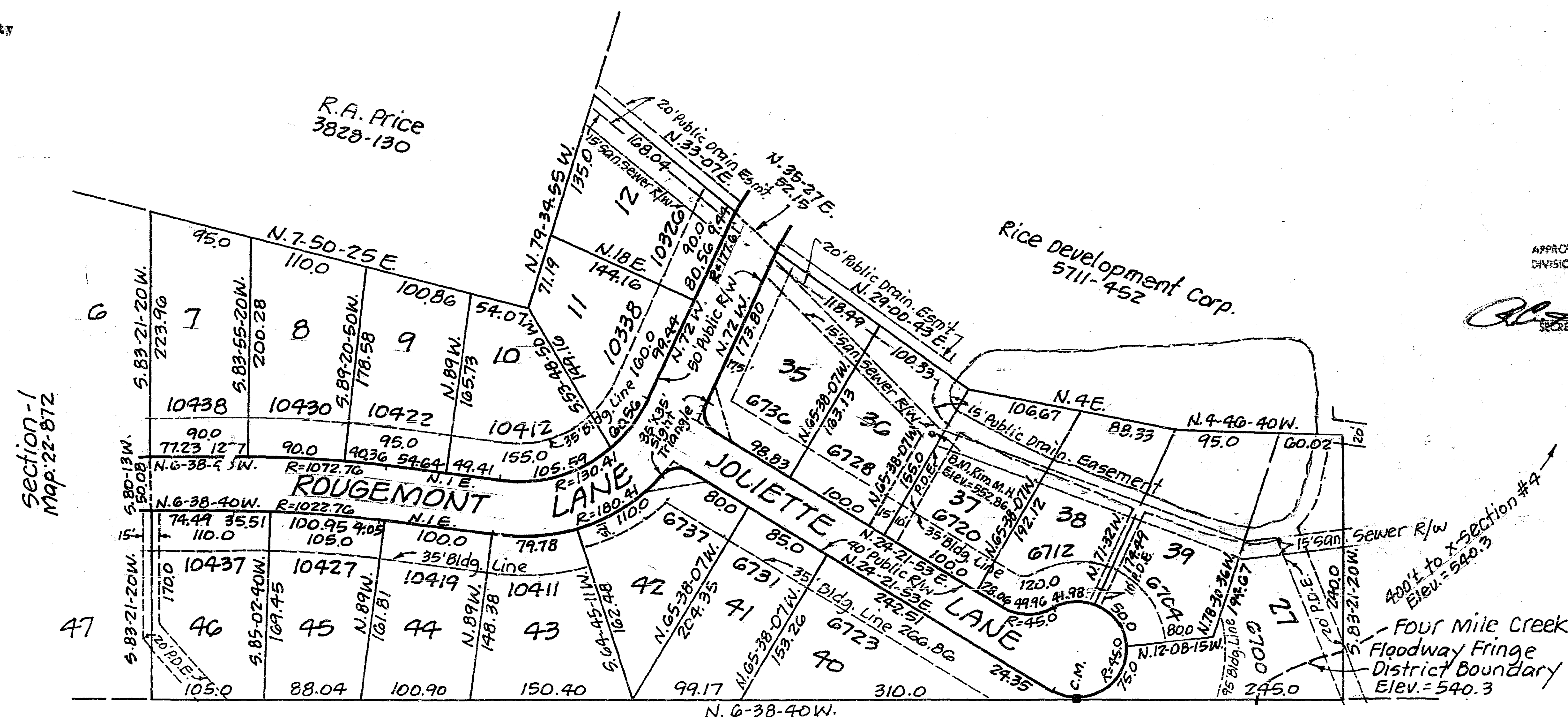
Map book 23 Page 530

PRESENTED FOR
REGISTRATION
89 DEC 20 PM 12:02
ANNE A. POWERS
REGISTER OF DEEDS
MECKLENBURG CO., N.C.



Magnetic North

State of North Carolina, County of Mecklenburg
The foregoing certificate(s) of Bill Rice Jr.
a Notary Public (is) (are) certified
to be correct.
This 20th day of December, 1989
Anne A. Powers, Register of Deeds
By Charles M. Pelt Deputy



APPROVED IN ACCORDANCE WITH THE PROVISIONS OF THE SUB
DIVISION ORDINANCE OF MECKLENBURG COUNTY, NORTH CAROLINA
CHARLOTTE-MECKLENBURG PLANNING COMMISSION

Charles M. Pelt 12/19/89
SECRETARY DATE

STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG

The undersigned surveyor, being duly sworn deposes and says that the plat upon which this certificate appears was prepared in accordance with G.S. 47-30 as amended, is in all respects correct according to the best of his knowledge and belief and was prepared from an actual survey made by him on the 17th day of April, 1989, with a maximum linear error of closure of 1:10,000, and a maximum field error of angular closure of 7.5 seconds angle.

Signed Bobby J. Raye
Registered Surveyor

STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG

Bill Rice Jr.
Notary Public, in and for the County of Mecklenburg, and the State of North Carolina, do hereby certify that Bobby J. Raye Reg. Land Surveyor, personally appeared before me, this day and acknowledged the due execution of the foregoing instrument.

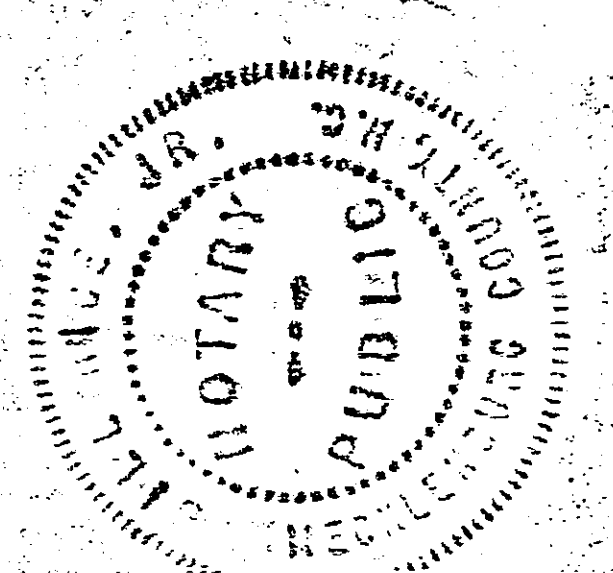
witness my hand and Notarial Seal, this 17th day of April, 1989

Notary Public
My commission expires September 22, 1992

curve data

Radius	Length	Long Chord
1072.76	143.13	N. 2-44-20W. 143.02
1022.76	136.46	" 136.36
130.41	166.15	N. 35-30W. 155.14
180.41	229.87	" 214.62

- Note: 1. Iron stakes at all lot corners unless otherwise noted.
2. All street corners are subject to a 20' radius, however all distances to street corners are to the intersection of street lines.
3. Area = 9.089 Acres.
4. Any construction or use within the areas delineated as floodway fringe district boundary & floodway district encroachment line is subject to the restrictions imposed by The Floodway Regulations of Mecklenburg Co.
5. Basis for bearings Deed: 244-1-71



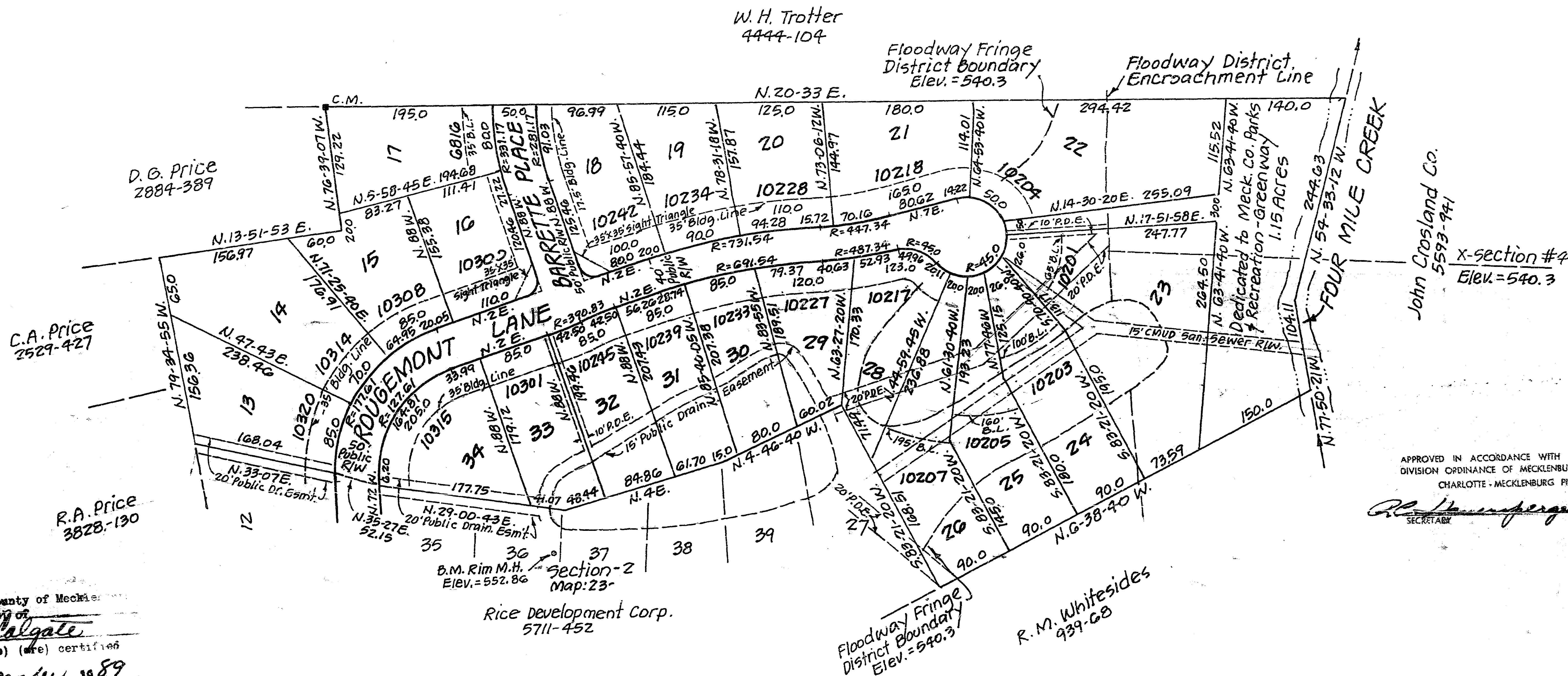
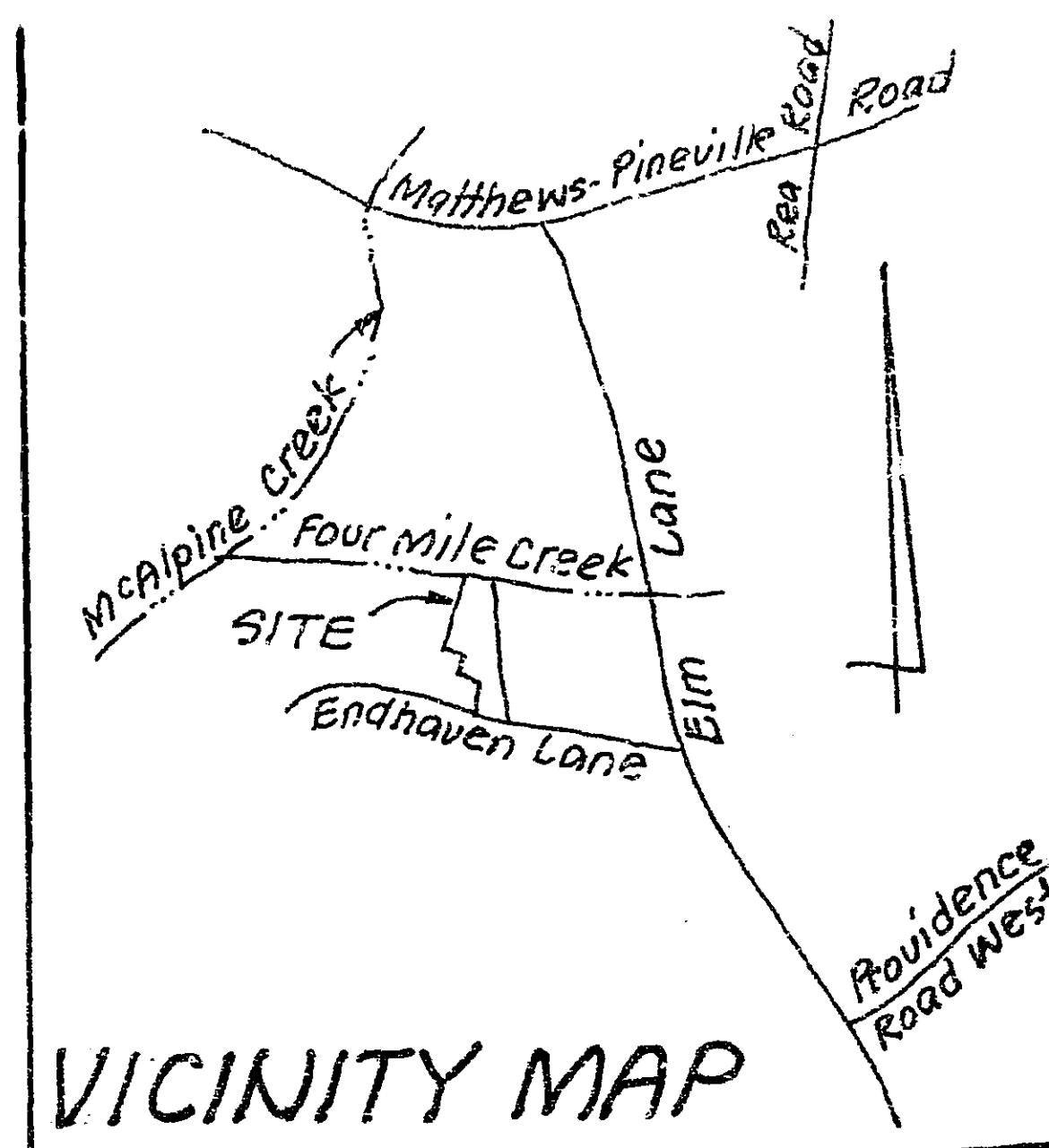
ROUGEMONT
SECTION-2
PROVIDENCE TOWNSHIP, MECKLENBURG CO., N.C.
PROPERTY OF RICE DEVELOPMENT CORP.
Scale: 1"=100'
April 1989
Bobby J. Raye
Reg. Surveyor
627 Eastway Drive
Charlotte, N.C.

Magnetic North

PRESENTED FOR
REGISTRATION

89 DEC 20 PM 12: 01

ADRIAN L. LOWERS
REGISTER OF DEEDS
MECKLENBURG CO., N.C.



APPROVED IN ACCORDANCE WITH THE PROVISIONS OF THE SUB
DIVISION ORDINANCE OF MECKLENBURG COUNTY, NORTH CAROLINA
CHARLOTTE - MECKLENBURG PLANNING COMMISSION

John Crosland Co.
5593-941
x-section #4
Elev = 540.3

State of North Carolina, County of Mecklenburg
I, Vanessa L. Colgate
a Notary Public (in) (are) certified
to be (true).
This 20th day of December 1989
I, Vanessa L. Colgate, Register of Deeds,
By: Charles W. Price, Deputy

STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG
The undersigned surveyor, being duly sworn de-
poses and says that the plat upon which this
certificate appears was prepared in accordance
with G.S. 47-30 as amended, is in all respects
correct according to the best of his knowledge
and belief and was prepared from an actual sur-
vey made by him on the 20th day of
June, 1989,
with a maximum linear error of closure of 1:10,
000, and a maximum field error of angular clo-
sure of 7.5 seconds per angle.
Signed Bobby J. Raye
Registered Surveyor

STATE OF NORTH CAROLINA
COUNTY OF MECKLENBURG
I, Vanessa L. Colgate
Notary Public, in and for the County of Meck-
lenburg, and the State of North Carolina, do here-
by certify that Bobby J. Raye, Reg. Land
Surveyor, personally appeared before me, this
day and acknowledged the due execution of the
foregoing instrument.
witness my hand and Notarial Seal, this 20th
day of June, 1989
Vanessa L. Colgate
Notary Public
My commission expires June 8, 1993

curve data

Radius	Length	Long Chord
177.61	229.39	N. 35 W. 212.78
127.01	104.81	" 153.69
331.17	107.22	N. 78-43-30 W. 106.75
281.17	91.03	" 90.63
390.83	42.50	N. 1-22-27 W. 42.48
731.54	204.28	N. 10 E 203.62
691.54	193.11	" 192.49
487.34	93.56	N. 12-30 E 93.42
447.34	85.88	" 85.75

- Note: 1. Iron stakes at all lot corners unless otherwise noted.
2. All street corners are subject to a 20' Radius, however
all distances to street corners are to the intersection
of street lines.
3. Area = 12.737 Acres
4. Any construction or use within the areas delineated
as floodway fringe district boundary/floodway district
encroachment line is subject to the restrictions imposed
by The Floodway Regulations of Mecklenburg Co.
5. Basis for bearings: Deed 2441-71
6. Zoning R-15
Min. Lot Area 15,000 Φ
" " width @setback 80'
" side yard 10'
" setback 35'
" rear yard 50'

DEPARTMENT OF TRANSPORTATION
DIVISION OF HIGHWAYS
12-15-89

ROUGEMONT
SECTION-3
PROVIDENCE TOWNSHIP, MECKLENBURG CO., N.C.
PROPERTY OF RICE DEVELOPMENT CORP.
Scale: 1"=100'
June 1989
Bobby J. Raye
Reg. Surveyor

